

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AMENDING RESOLUTION NO. 5152 OUTLINING ELECTION PROCEDURES AND GUIDELINES FOR A CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTION FOR THE PURPOSE OF SUBMITTING TO QUALIFIED DISTRICT VOTERS A BALLOT QUESTION PROVIDING FOR A SPECIAL PROPERTY ASSESSMENT AS AUTHORIZED BY WYO. STAT. § 15-9-217 (b) ."

WHEREAS, Resolution No. 5152, adopted by the Governing Body of the City of Cheyenne on August 8, 2005, provided election procedures and guidelines for the conduct of a special election for Cheyenne Downtown Development Authority District property owners, excluding real property used exclusively for residential purposes, as provided by Wyo. Stat. § 15-9-217 (b); and

WHEREAS, the Cheyenne Downtown Development Authority wishes to conduct an election on whether to reauthorize a special property assessment pursuant to Wyo. Stat. § 15-9-217 (b); and

WHEREAS, based upon recommendations of the Cheyenne Downtown Development Authority Board and the City Clerk, the governing body desires to amend Resolution No. 5152 previously adopting procedures and guidelines in conjunction with the special assessment elections.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the governing body hereby amends Resolution No. 5152 by revising the previously adopted procedures and guidelines for Cheyenne Downtown Development Authority District special assessment elections as more fully set forth in Attachment A to this resolution.

PRESENTED, READ AND ADOPTED THIS _____ day of _____, 2015.

RICHARD L. KAYSEN, MAYOR

(S E A L)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

ATTACHMENT A

PROCEDURES AND GUIDELINES FOR CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT SPECIAL ELECTIONS (PROPERTY ASSESSMENT)

A. WYOMING STATUTES GOVERNING ELECTION

1. Wyo. Stat. §15-9-217 (b)

NOTE: Various areas of Wyo. Stat. §§22-23-801 through 22-23-809, Municipal Special Elections, were also considered in compiling these procedures and guidelines.

B. CITY ORDINANCES AND RESOLUTIONS GOVERNING ELECTION

1. Resolution authorizing special election
2. Resolution adopting procedures and guidelines for conduct and canvassing of elections
3. Ordinance submitting special election ballot question to qualified property owners
4. Resolution adopting election Canvassing Board results.

C. GENERAL PROCEDURES

1. Cheyenne Downtown Development Authority shall submit, pursuant to a specific date set by the City Clerk, a letter to the City Clerk requesting the City of Cheyenne conduct an election pursuant to Wyo. Stat. §15-9-217 (b). Letter shall include the following information:
 - a. Date of proposed election
 - b. Wording of question to be placed on election ballot
 - c. Effective term of assessment (not to exceed four (4) years) if majority vote received
 - d. Confirmation that a list of qualified voters will be submitted when the Laramie County Assessor completes the most recent update of DDA District property owners database (1 original by alpha and 1 original by address; 3 copies of each)
 - (i) Persons owning real property within the District, excluding real property used exclusively for residential purposes, or
 - (ii) Persons obligated for the payment of general property taxes pursuant to tax assessment notification as issued by the Laramie County Assessor or the Wyoming Department of Revenue.
 - e. Confirmation that the names of three (3) persons who may serve as election judges; and names of any alternate judges will be submitted not less than one month prior to the election.

NOTE: Any election information (ballot question, issues, general info, absentee, etc.) provided as a courtesy to property owners is the responsibility of the Downtown Development Authority Board and its members.

2. The City Clerk will submit a resolution for governing body approval for the special election date, and specify procedures and guidelines to be utilized in the conduct of the election.

D. ELECTION GUIDELINES

(DDA District shall be considered as one (1) voting precinct for election purposes)

1. Voters; election site
 - a. All qualified voters of non-residential property within the boundaries of the Cheyenne Downtown Development Authority District per tax assessment listing provided by the Laramie County Assessor, are eligible to vote per Section C (d) above. Each qualified voter will be allowed one (1) vote per the number of property tax assessment notices the qualified voter receives for real property, excluding property used exclusively for residential purposes, within the District as issued by the Laramie County Assessor or the Wyoming Department of Revenue.
 - b. A listing of qualified voters of non-residential properties within the District, as compiled by the Laramie County Assessor, will be used by the judges of the election in determining the voter roster. A copy of the election ballot, along with a map outlining the established boundaries of the Cheyenne Downtown Development Authority District, will be posted at the election site. Voters will be required to sign an affidavit stating their authority to cast a vote(s) at the polling site on the date of election reflecting: (1) ownership of non-residential property within the District, or (2) authority as the person obligated for payment of general property taxes pursuant to tax assessments issued by the Laramie County Assessor and state assessed properties that receive assessment through the Wyoming Department of Revenue.
 - c. Sole polling place for the election will be at a location determined by the Cheyenne Downtown Development Authority Board with polls to be open from 9:00 a.m. until 3:00 p.m. on the date of election.
 - d. Upon request, voters may request an absentee ballot(s) from the City Clerk's Office, and cast their vote through the absentee ballot process.
 - e. Tabulation of ballots cast will be by manual tabulation by the canvassing board, or as determined by the City Clerk.
2. Election judges
 - a. There shall be three (3) election judges on the polling premises during the time established for the election (9:00 a.m. to 3:00 p.m.). Judges will be owners of real property, business proprietors or employees of same within the District. Judges may serve voluntarily without compensation, or they

may be compensated at the rate allowed by Wyo. Stat. §22-8-116 (election code).

- b. The judges of the special election shall discharge the same duties as the judges of regular elections.
- c. Judges will be provided with accessibility to telephones, rest rooms, beverages, etc. at the polling place, and lunches will be provided or judges will be reimbursed for luncheon expenses. Judges must remain at the polling site during election hours.

3. Absentee voting

- a. Absentee voting on the question is permitted and votes cast will be included in the manual tabulating of the ballots, or as determined by the City Clerk. The ballots will contain the same question as stated on the ballots available at the polling place, and will provide the absentee elector the opportunity to indicate his or her vote of “for” or “against” the ballot question.
- b. Any qualified voter who will be absent on election day, or who can not be present at the polling place on election day, may vote by absentee ballot upon making application in person, in writing, or by telephone, to the City Clerk’s Office, 2101 O’Neil Ave., Cheyenne, WY 82001, telephone (307) 637-6346, and by furnishing the following information:
 - Name in full,
 - Name in which the property is held,
 - How applicant is associated with the property/entity,
 - Election for which an absentee ballot is being requested,
 - Location of property within the District, and
 - If absentee ballot will not be obtained in person, the address to which the absentee ballot is to be mailed.

NOTE: Request for an absentee ballot may be made on behalf of an absentee qualified elector if the prescribed information listed above is furnished. The absentee voter will be entitled to vote upon executing an affidavit, indicating the applicant is entitled to vote in the election, with said affidavit printed on the reverse side of the return ballot envelope to be returned to the City Clerk’s Office.

- c. Requests for absentee ballots may be made not sooner than 25 days prior to the election date and not later than the close of business of the City Clerk’s Office on the day prior to the election date.

4. Publications; ballots

- a. The date of the special election, location of the polling place and specified election procedures will be proclaimed by ordinance by the Governing Body of the City of Cheyenne not more than 45 days nor less than 30 days before the date of the election. In addition to publication of the ordinance, including a map outlining the established boundaries of the Cheyenne

Downtown Development Authority District, the City Clerk will cause the Proclamation and Notice of Election and Public Notice of Elector Qualifications portion of the ordinance, including a map of the district, to be published at least twice (2) in a newspaper of general circulation within the city prior to the election date.

- b. All ballots, including absentee, will be prepared by the City Clerk or the Cheyenne Downtown Development Authority.

E. POST ELECTION PROCEDURES

1. Canvassing Board

- a. Canvassing Board members shall be comprised of the Deputy City Clerk and two (2) other persons from the community designated by the Mayor. Community members will serve without compensation.

2. Canvassing

- a. Votes will be tabulated and canvassed by members of the Canvassing Board immediately upon closure of the polls at 3:00 p.m. on the day of the election. Results will be certified by the Board to the City Clerk.
- b. All records of the election will be kept by the City Clerk for the required records retention time frame for special municipal elections.
- c. The Governing Body of the City of Cheyenne will certify by resolution the Canvassing Board's findings and results of the election. The City Clerk will provide a certified copy of the resolution to the Laramie County Assessor.

- (1) If the majority of votes cast are in favor of the special assessment, the City Clerk will include in the certified copy of the resolution to the Laramie County Assessor, the effective term of the assessment.